



Income Tax Department

Ministry of Finance, Government of India

Interpretation.

261. For the purposes of this Part,—

- (a) "approving authority" means—
 - (i) the Principal Director General or the Director General; or
 - (ii) the Principal Chief Commissioner or the Chief Commissioner; or
 - (iii) the Principal Director or the Director; or
 - (iv) the Principal Commissioner or the Commissioner;
- (b) "asset" includes any money, bullion, jewellery, virtual digital asset or other valuable article or thing, held in physical or virtual form;
- (c) "authorised officer" means—
 - (i) the Joint Director or the Additional Director; or
 - (ii) the Joint Commissioner or the Additional Commissioner; or
 - (iii) the Assistant Director or the Deputy Director; or
 - (iv) the Assistant Commissioner or the Deputy Commissioner; or
 - (v) the Income-tax Officer or the Tax Recovery Officer;
- (d) "competent authority" means—
 - (i) the Principal Director General or the Director General; or
 - (ii) the Principal Chief Commissioner or the Chief Commissioner; or
 - (iii) the Principal Director or the Director; or
 - (iv) the Principal Commissioner or the Commissioner; or
 - (v) the Joint Director or the Additional Director; or
 - (vi) the Joint Commissioner or the Additional Commissioner;
- (e) "computer system" means computers, computer networks, computer resources, communication devices, digital or electronic data storage devices, used on stand-alone mode or part of a computer system, linked through a network, or utilised through intermediaries for information creation or processing or storage or exchange, and includes the remote server or cloud server or virtual digital space;
- (f) "date on which the last of the authorisations for search was executed" means—
 - (i) in the case of search, the date of conclusion of search as recorded in the last panchnama drawn in relation to any person in whose case the warrant of authorisation has been issued; or
 - (ii) in the case of requisition under section 248, the date of actual receipt of the books of account or other documents or computer system or assets by the requisitioning officer;
- (g) "electronic form" shall have the same meaning as provided in section 2(1)(r) of the Information Technology Act, 2000 (21 of 2000);
- (h) "electronic record" shall have the same meaning as provided in section 2(1)(t) of the Information Technology Act, 2000 (21 of 2000);
- (i) "material seized or requisitioned" means books of account or other documents or computer systems, and extracts seized from a person during the course of search under section 247 or requisitioned under section 248, and includes seizure of backup taken from any specialised programs like tally software, excel sheets, word files and all electronic records including data and information in electronic form or on the computer system, containing figures and any other relevant noting, and shall be construed to mean as books of account maintained by the said person;
- (j) "virtual digital space" means an environment, area or realm, that is constructed and experienced through computer technology and not the physical, tangible world which encompasses any digital realm that allows users to interact, communicate and perform activities using computer systems, computer networks, computer resources, communication devices, cyberspace, internet, worldwide web and emerging technologies, using data and information in the electronic form for creation or storage or exchange and includes—
 - (i) email servers;
 - (ii) social media account;
 - (iii) online investment account, trading account, banking account, etc.;
 - (iv) any website used for storing details of ownership of any asset;
 - (v) remote server or cloud servers;
 - (vi) digital application platforms; and
 - (vii) any other space of similar nature.